

Michigan's Persons with Disabilities Civil Rights Act

The opportunity to obtain real estate or to use public accommodations can't be discriminated on the basis of a person's disability. Reasonable accommodations must be made for those with disabilities, unless doing so would create an undue hardship. Specific to housing, disability is a physical or mental condition resulting from disease, injury, birth, or functional disorder that substantially limits one or more major life activities and is unrelated to the individual's ability to acquire, rent, or maintain property.

Violations

The following actions are prohibited on the basis of disability:

- Refusing to engage in or negotiate a real estate transaction
- Discriminating against the person in relation to terms, conditions, or privileges related to the transaction, or when providing services or facilities related to the transaction.
- Refusing to receive or present a bona fide offer related to a real estate transaction.
- Representing that a property isn't available for inspection, sale, rental, lease, etc. when it's available. This includes intentionally failing to bring a property listing to the individual's attention or denying property to a person.
- Creating and circulating materials (such as advertisements or other items related to a transaction) that directly or indirectly imply a preference, limitation, specification or discrimination. For example, including "no wheelchairs" in advertisements would be a violation.
- Offering real estate services, trying to solicit listings, or accepting a listing with the understanding that discrimination may occur during the transaction. For example, if a seller tells a licensee that he'll refuse to accept any offers from a person with a disability, the licensee shouldn't represent or work with this seller.
- Discriminating activities related to property appraisals, negotiations, or other brokering arrangements (such as financing).

Access to real estate services, organizations, associations, or memberships (such as in a multiple listing service) can't be denied on the basis of disability.

Exceptions

Exceptions to the above include:

- Rentals in a building that has housing accommodations for two or fewer families living independently of one another, if the owner or an immediate family member lives in one of the accommodations. Immediate family includes spouse, parent, child, or sibling.
- Renting a room or rooms in a single family dwelling if the lessor or an immediate family member resides in the dwelling.

Lending-Related Violations

Lenders can't discriminate on the basis of disability. These decisions should be made based on the applicant's creditworthiness. Blockbusting is prohibited.

Additional Prohibitions Under the Act

The following actions are also prohibited:

- Refusing to allow a person with a disability to, at their own expense, make reasonable modifications to the property deemed necessary for full enjoyment of the property. However, for rented property, the owner may require that the property be restored to its original condition (except for normal wear and tear).
- Refusing to make reasonable accommodations in rules, practices, or services preventing full enjoyment by the disabled party.
- Designing or building covered multi-family dwellings (these are buildings with four or more units if the building has at least one elevator, or buildings with a ground floor with four or more units) that fail to include any of the following:
 - At least one accessible entrance, unless terrain or site characteristics prevent this.
 - Accessible public and common use areas that can be used by persons with disabilities.
 - Doors designed to accommodate passage by wheelchairs.
 - Accessible routes into and through dwellings, including light switches, outlets, thermostats, property controls, reinforced walls for grab bars, and space in kitchens and bathrooms for wheelchairs to maneuver.